

Legal Aid Act, 1997

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Legal Aid Act, 2054

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Amending Acts

1. Act to Amend Some Nepal Acts, 2055 2055.10.17

Certification and Publication Date

2. Act to Consolidate the Republic and Amend Some Nepal Laws, 2066 2066.10.17

3. Act to Amend Some Nepal Acts to Ensure Gender Equality and End Gender-Based Violence, 2072 2072.6.14

Act No. 16 of the year 2044

Act Made to Provide for Legal Aid

Preamble: Whereas, in accordance with the principle of the rule of law, it is necessary to make justice equally available to all; therefore, it is desirable to make legal provision for providing necessary legal aid to incapable persons who are unable to protect their legal rights and interests due to economic and social reasons;

Now, therefore, in the twenty-sixth year of the reign of His Majesty King Birendra Bir Bikram Shah Dev, Parliament has enacted this Act. 1. Short Title and Commencement: (1) This Act may be called the "Legal Aid Act, 2054".

(2) Section 1 of this Act shall come into force immediately, and the other sections shall come into force in the areas specified by the Government of Nepal by notification in the Nepal Gazette on the date so specified. The date of enforcement and the districts are given at the end. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Legal aid" means legal advice and consultation given to an incapable person pursuant to this Act, and the term also includes pleading, drafting, and other services rendered in connection with legal proceedings in courts on behalf of such incapable person. Added by the Act to Amend Some Nepal Acts to Ensure Gender Equality and End Gender-Based Violence, 2072.(a1) "Incapable person" means a person whose annual income is less than the prescribed annual income or a person who is a victim of gender-based violence or armed conflict.

(b) "Central Committee" means the Central Legal Aid Committee constituted pursuant to Section 6.

(c) "District Committee" means the District Legal Aid Committee constituted pursuant to Section 7.

(d) "Court" means the court or tribunal in which the person receiving legal aid is a party and in which legal proceedings are ongoing, and the term also includes the officer or office hearing the case or conducting legal proceedings.

(e) "Prescribed" or "as prescribed" means prescribed or as prescribed by rules made under this Act. 3.

Persons Entitled to Legal Aid:- Amended by the Act to Amend Some Nepal Acts to Ensure Gender Equality and End Gender-Based Violence, 2072.(1) An incapable person may obtain legal aid pursuant to this Act. (2) The relevant Committee shall have the authority to decide whether or not to provide legal aid to a person. (3) While deciding on the provision of legal aid, the relevant Committee shall also take into consideration that the tendency to cause unnecessary harassment to others and to file baseless cases is not encouraged. 4.

Reimbursement of Expenses Incurred for Legal Aid:- (1) If a person obtains any property or financial benefit as a result of receiving legal aid, such person shall reimburse to the Committee the expenses incurred by the relevant Committee as prescribed on account of receiving legal aid. Provided, that if it appears that collecting the expenses incurred for legal aid from such person would cause him/her hardship, the relevant Committee may grant full or partial exemption from recovering such expenses. (2) The Court may, in its judgment, order that the expenses incurred by the relevant Committee in providing legal aid to a person be recovered from the person receiving such legal aid, and such order shall be enforced in accordance with prevailing law. 5.

List of Legal Practitioners and Remuneration:- (1) For the purpose of providing legal aid to incapable persons, the relevant Committee shall prepare a separate list of legal practitioners for dealing with cases of different subjects or types from among the members of the Nepal Bar Association. Provided,- (1) If there is no unit of the Nepal Bar Association in a district, legal practitioners who are not members of the Nepal Bar Association may also be included in the list of legal practitioners providing legal aid. (2) While preparing the list of legal practitioners, if a legal practitioner to handle a case of the relevant subject or type is not available in a district, the relevant Committee may include a legal practitioner from another district in the list with the consent of such legal practitioner. (2) Legal practitioners included in the list pursuant to sub-section (1) may provide legal aid to incapable persons under this Act. (3) The relevant Committee shall have the authority to include the name of any legal practitioner in the list prepared pursuant to sub-section (1) or to remove the name of any legal practitioner from such list. Provided, that if a legal practitioner is aggrieved by the removal of his/her name from the list, he/she may file a complaint as prescribed. (4) The relevant Committee shall provide remuneration as prescribed to the legal practitioner providing legal aid. 6.

Constitution, Functions, Duties and Powers of the Central Legal Aid Committee:- (1) There shall be constituted a Central Legal Aid Committee to make necessary arrangements for providing legal aid to incapable persons, and the Committee shall consist of the following members:- (a) Minister for Law, Justice and Parliamentary Affairs - Chairperson (b) Chairperson, Nepal Council of Legal Practitioners - Member Added by the Act to Amend Some Nepal Acts to Ensure Gender Equality and End Gender-Based Violence, 2072.(b1) Secretary, Ministry of Law, Justice and Parliamentary Affairs - Member Added by the Act to Amend Some Nepal Acts to Ensure Gender Equality and End Gender-Based Violence, 2072.(b2) Secretary, Ministry of Women, Children and Social Welfare - Member (c) President, Nepal Bar Association - Member (d) One legal expert nominated by the Central Committee - Member (e) Secretary, Nepal Bar Association - Member-Secretary (2) The term of office of the nominated member under clause (d) of sub-section (1) shall be three years. (3) The functions, duties and powers of the Central Committee shall be as follows:- (a) to determine policies and programs relating to legal aid, (b) to oversee and control the activities of District Committees and to give necessary directions to such Committees, (c) to provide grants to District Committees for work relating to legal aid, (d) to arrange necessary funds for work relating to legal aid, (e) to

prepare a list of legal practitioners to provide legal aid on behalf of incapable persons in the Supreme Court, (f) to publish and distribute introductory books, booklets, information, etc. on various subjects to inform the public about law and legal aid, and to conduct or cause research for that purpose, (g) to constitute various sub-committees as necessary for work relating to legal aid and to specify the functions, duties and powers of such sub-committees, (j) Omitted by the Act to Amend Some Nepal Acts, 2055.(j) (jh) to appoint employees as required by the Central Committee, (na) to delegate, as necessary, some of the powers conferred upon it to any sub-committee constituted under this Act or to any employee of the Central Committee, (ta) to do or cause to do other work as prescribed for the fulfillment of the objectives of this Act. (4) The procedure for meetings of the Central Committee shall be as prescribed. 7.

Constitution, Functions, Duties and Powers of the District Legal Aid Committee: (1) For the purpose of providing legal aid to incapable persons at the district level and also for preparing a list of legal practitioners providing legal aid to incapable persons, there shall be constituted in each district a District Legal Aid Committee consisting of the following members:- (a) In a district where there is a High Court, the Assistant Attorney General of the Appellate Government Attorney Office, or in districts where there is no such office, the District Attorney - Chairperson Added by the Act to Amend Some Nepal Acts to Ensure Gender Equality and End Gender-Based Violence, 2072.(a1) Women Development Officer of the concerned District Women and Children Office - Member (b) Chairperson of the higher-level unit among the Bar Association units located in the district - Member. Provided that, in the case of Kathmandu district, the Chairperson of the District Bar Association shall be the Member. (c) Two legal practitioners nominated by the District Committee from among the legal practitioners of the district - Member (d) Secretary of the higher-level unit among the Bar Association units located in the district - Member-Secretary. Provided that, in the case of Kathmandu district, the Secretary of the District Bar Association shall be the Member-Secretary. (2) The term of office of the members under clause (c) of sub-section (1) shall be three years. (3) Other functions, duties and powers of the District Committee and the procedure for its meetings shall be as prescribed. 8. **Legal Aid Fund:** (1) There shall be a Fund for work relating to legal aid, and the following amounts shall be deposited in such Fund:- (a) Amount received from the Government of Nepal as grant. (b) Amount received as grant, donation or assistance from any person, association or organization. (c) Amount received from other sources. (2) The operation of the Fund under sub-section (1) shall be as prescribed. 9. **Accounts and Audit:** (1) The Central Committee and the District Committee shall keep accounts of their income and expenditure in the format prescribed by prevailing law. (2) The audit of the income and expenditure of the Central Committee and the District Committee shall be carried out by the Office of the Auditor General. 10. **Provisions Relating to Employees:** (1) The Central Committee and the District Committee may appoint employees in necessary numbers. Added by the Act to Amend Some Nepal Acts, 2055.(1a) The Central Committee may appoint a person having at least a bachelor's degree in law to the post of Office Secretary.

Until such appointment is made, the Government of Nepal may, upon the request of the Central Committee, depute a gazetted employee to the post of Office Secretary. (2) Notwithstanding anything contained in sub-section (1), the District Committee shall obtain the approval of the Central Committee before appointing employees. (3) The remuneration, terms of service and facilities of employees appointed under sub-section (1) shall be as determined by the Central Committee. 11. **Provision of Copies:** The Court shall provide copies of documents to the concerned legal practitioner and employee involved in legal aid work without charging the fee prescribed by prevailing law for providing copies. 12. **Power to Make Rules:** (1) The Central Committee may make necessary rules for the implementation of the objectives of this Act. (2) Rules made under sub-section (1) shall come into force after approval by the Government of Nepal, Ministry of Law, Justice and Parliamentary Affairs and publication in the Nepal Gazette. **Note:-** 1. Dates and districts from

which the sections of the Act came into force: 1. By notification published in the Gazette dated 2055.1.21, Sections 6 and 12 of the said Act were specified to come into force from 2055.1.26. 2. By notification published in the Gazette dated 2055.7.23, all remaining sections were specified to come into force in the following districts from 2055.7.23:- (1) Sunsari (2) Bara (3) Dolakha (4) Palpa and (5) Banke. 3. By notification published in the Gazette dated 2056.11.7, all remaining sections were specified to come into force in the following districts from 2056.11.7:- (1) Sarlahi (2) Dhading (3) Gulmi. 4. By notification published in the Gazette dated 2057.12.20, all remaining sections were specified to come into force in the following districts from 2058.1.1:- (1) Kanchanpur (2) Kaski (3) Makwanpur (4) Dhanusha and (5) Jhapa. 5. By notification published in the Gazette dated 2060.8.22, all remaining sections were specified to come into force in the following districts from 2060.9.1:- (1) Dhankuta (2) Saptari (3) Siraha (4) Rautahat (5) Sindhupalchok (6) Tanahu (7) Kapilvastu (8) Surkhet (9) Bardiya (10) Darchula. 6. By notification published in the Gazette dated 2061.6.1, all remaining sections were specified to come into force in the following districts from 2061.6.1:- (1) Dhankuta (2) Saptari (3) Siraha (4) Rautahat (5) Sindhupalchok (6) Tanahu (7) Kapilvastu (8) Surkhet (9) Bardiya (10) Darchula. 7.

By notification published in the Gazette dated 2063.12.29, all remaining sections were specified to come into force in the following districts from 2063.4.1:- (1) Panchthar (2) Udayapur (3) Sindhuli (4) Chitwan (5) Nawalparasi (6) Baglung (7) Parbat (8) Arghakhanchi (9) Pyuthan (10) Dadeldhura. 8. By notification published in the Gazette dated 2064.9.30, all remaining sections were specified to come into force in the following districts from 2064.10.1:- (1) Taplejung (2) Bajhang (3) Nuwakot (4) Lamjung (5) Myagdi (6) Gorkha (7) Ramechhap (8) Jumla (9) Rolpa (10) Baitadi. 9. By notification published in the Nepal Gazette dated 2066.5.29, all remaining sections were specified to come into force in the following districts from 2066.6.1:- 1. Kathmandu 2. Lalitpur 3. Bhaktapur 4. Solukhumbu 5. Bhojpur 6. Khotang 7. Achham 8. Dailekh 9. Rukum 10. Jajarkot 11. Okhaldhunga 12. Sankhuwasabha 13. Terhathum 14. Bajura 15. Humla 16. Dolpa 17. Mugu 18. Rasuwa 19. Manang 20. Mustang 21. Salyan 22. Kalikot 2. By the Act to Amend Some Nepal Acts, 2055, the following words used in the prevailing law have been substituted with the following words:- (a) In place of "Government Attorney", "Assistant Attorney General" (b) In place of "District Government Attorney", "District Attorney" 3. Words transformed by the Act to Amend Some Nepal Laws, 2063:- In place of "His Majesty's Government", "Government of Nepal" 4. Words transformed by the Act to Amend Some Nepal Acts, 2072:- In place of "Ministry of Law, Justice and Parliamentary Affairs", "Ministry of Law, Justice and Parliamentary Affairs" [Note: original Nepali had variations but all replaced by same phrase] 5. Words transformed by the Judicial Administration Act, 2073:- In place of "Appellate Court", "High Court"